

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	10-07-2026 17:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	10-07-2026 17:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	120 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Petroleum And Natural Gas
विभाग का नाम/Department Name	Indian Oil Corporation Limited
संगठन का नाम/Organisation Name	locI- Wrpl
कार्यालय का नाम/Office Name	Rajkot
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id : Buyer Email id: rprashant@indianoil.in
वस्तु श्रेणी /Item Category	Custom Bid for Services - AMC of Blue Star Make packaged air conditioners installed in VFD room at WRPL Viramgam
समान श्रेणी/Similar Category	- ANNUAL MAINTENANCE SERVICE FOR Centralised air conditioning system - Comprehensive Annual Maintenance Services for Precision Air Conditioners - Operation And Maintenance Of HVAC System (Heating, Ventilation And Air Conditioning System)
अनुबंध अवधि /Contract Period	1 Year(s)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Experience Criteria,Bidder Turnover,Certificate (Requested in ATC),Additional Doc 1 (Requested in ATC),Additional Doc 2 (Requested in ATC),Additional Doc 3 (Requested in ATC),Additional Doc 4 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer

बिड विवरण/Bid Details	
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	4 Days
अनुमानित निविदा मूल्य (सभी करों सहित) भारतीय रुपये में / Estimated Bid Value in INR (Inclusive of all taxes)	722725.88
Payment Timelines	Payments shall be made to the Seller within 30 days of issue of service delivery acceptance certificate (SDAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)	5.00
ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).	18

(a). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

लाभार्थी /Beneficiary :

WRPL Rajkot

Rajkot, INDIAN OIL CORPORATION LIMITED, IOCL- WRPL, Ministry of Petroleum and Natural Gas
(Indian Oil Corporation Limited)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

- 1. Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for % (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.
- 2. If L-1 is not an MSE and MSE Service Provider (s) has/have quoted price within L-1+ 15% of margin of purchase preference /price band as defined in the relevant policy, then 100% order quantity will be awarded to such MSE bidder subject to acceptance of L1 bid price.**
- 3. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.**

एक्सेल में अपलोड किए जाने की आवश्यकता /Excel Upload Required :

Commercial Annexure - [1782813533.xlsx](#)

अतिरिक्त योग्यता /आवश्यक डेटा/Additional Qualification/Data Required

Introduction about the project /services being proposed for procurement using custom bid functionality:[1782813575.pdf](#)

Instruction To Bidder:[1782813647.pdf](#)

Pre Qualification Criteria (PQC) etc if any required:[1782813653.pdf](#)

Scope of Work:[1782813659.pdf](#)

Payment Terms:[1782813665.pdf](#)

Quantifiable Specification / Standards of The Service/ BOQ:[1782813674.pdf](#)

Project Experience and Qualifying Criteria Requirement:[1782813679.pdf](#)

GEM Availability Report (GAR):[1782813684.pdf](#)

Any other Documents As per Specific Requirement of Buyer -1:[1782813697.pdf](#)

Any other Documents As per Specific Requirement of Buyer -2:[1782813720.pdf](#)

Undertaking of Competent Authority is mandatory to create Custom Bid for Services. Please download standard format document and upload:[1782813730.pdf](#)

Custom Bid For Services - AMC Of Blue Star Make Packaged Air Conditioners Installed In VFD Room At WRPL Viramgam (1)

तकनीकी विशिष्टियाँ /Technical Specifications

विवरण/ Specification	मूल्य/ Values
कोर / Core	
Description /Nomenclature of Service Proposed for procurement using custom bid functionality	AMC of Blue Star Make packaged air conditioners installed in VFD room at WRPL Viramgam
Regulatory/ Statutory Compliance of Service	YES
Compliance of Service to SOW, STC, SLA etc	YES
एडऑन /Addon(s)	

क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer

क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer	No
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अतिरिक्त विशिष्टि दस्तावेज़ /Additional Specification Documents

प्रेषिती/रिपोर्टिंग अधिकारी /Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	Quantity	अतिरिक्त आवश्यकता /Additional Requirement
1	Mrigendra Kumar	382150, Western Region Pipelines, Indian Oil Corporation Limited, Post Box No. 4, Viramgam, Near Hansalpur Chowkadi, Ahmedabad	Project / Lumpsum Based	N/A

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE 50% : The buyer can increase or decrease the contract quantity or contract duration up to 50 percent at the time of issue of the contract. However, once the contract is issued, the contract quantity or contract duration can only be increased up to 50 percent. Bidders are bound to accept the revised quantity or duration.

For lumpsum-based service contracts, the buyer may increase the scope of work and contract value up to 50 percent with the consent of the service provider

2. Generic

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

3. Generic

1. The Seller shall not assign the Contract in whole or part without obtaining the prior written consent of buyer.
2. The Seller shall not sub-contract the Contract in whole or part to any entity without obtaining the prior written consent of buyer.
3. The Seller shall, notwithstanding the consent and assignment/sub-contract, remain jointly and severally liable and responsible to buyer together with the assignee/ sub-contractor, for and in respect of the due performance of the Contract and the Sellers obligations there under.

4. Purchase Preference (Centre)

Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail the Purchase preference, the bidder must be the manufacturer of the offered product in case of bid for supply of goods. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service. If L-1 is not an MSE and MSE Seller (s) has/have quoted price within L-1+ 15% of margin of purchase preference /price band defined in relevant policy, such Seller shall be given opportunity to match L-1 price and contract will be awarded for percentage of 100% of total value.

5. Certificates

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

6. Payment

PAYMENT OF SALARIES AND WAGES: Service Provider is required to pay Salaries / wages of

contracted staff deployed at buyer location first i.e. on their own and then claim payment from Buyer alongwith all statutory documents like, PF, ESIC etc. as well as the bank statement of payment done to staff.

7. Forms of EMD and PBG

Bidders can also submit the EMD with Payment online through RTGS / internet banking in Beneficiary name

Indian Oil Corporation Limited
Account No.
10524942089
IFSC Code
SBIN0003829
Bank Name
State Bank Of India
Branch address
Jagnath Plot, Rajkot

. Bidder to indicate bid number and name of bidding entity in the transaction details field at the time of on-line transfer. Bidder has to upload scanned copy / proof of the Online Payment Transfer along with bid.

8. Forms of EMD and PBG

Successful Bidder can submit the Performance Security in the form of Payment online through RTGS / internet banking also (besides PBG which is allowed as per GeM GTC). On-line payment shall be in Beneficiary name

Indian Oil Corporation Limited
Account No.
10524942089
IFSC Code
SBIN0003829
Bank Name
State Bank Of India
Branch address
Jagnath Plot, Rajkot

. Successful Bidder to indicate Contract number and name of Seller entity in the transaction details field at the time of on-line transfer. Bidder has to upload scanned copy / proof of the Online Payment Transfer in place of PBG within 15 days of award of contract.

9. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

1. Methodology to arrive at the rates quoted by bidder against each item:

- I. Bidder is required to quote total overall amount inclusive of GST against total amount i.e. **Rs.7, 22,725.88/-** on GeM Portal
- II. As per estimate the total cost of SOR is **Rs.7,22,725.88/- (Incl. GST)**
- III. Say, if the total amount quoted by bidder on GeM portal is **Rs. 7,00,000.00/- (Incl. GST)**
- IV. Accordingly, the overall quoted amount by the bidder is **3.14% below estimate**. Thereafter taking in consideration of GST as filled in Annexure-8, individual basic item rates shall be worked out based on calculated % variation to the estimate **(-3.14% in this case)**.

V. Similar methodology shall be applied if bidder quoted above the total cost of estimated value.

2. Further bidder is also advised to submit **Annexure 1 to 34** duly filled signed and stamped by authorized signatory with Bid. **Annexures 1 to 34** (Excel Format) attached in bid in attachment at heading as **Excel Upload Required**.

3. MSE / MII Preference: The Bidder needs to submit/update MSE/MI credentials on Gem portal during profile updation/ offer submission stage. The MSE data submitted is cross verified by Gem with Govt. of India UDYAM/NSIC database through API integration on real time basis and for MII, a self-declaration is being given and authenticated by Aadhar OTP. If the bidder fails to claim MSE/MI provision on Gem portal at profile updation/bid submission stage, the said bidder will become ineligible for getting the MSE/MI Gem benefits / preferences for that bid automatically. The Bidder can always contact the Gem helpdesk, in case of any issues.

4. Bidder to quote prices inclusive of GST. GST rates are to be quoted separately in Annexure -8. However, any new taxes, duties, levies etc., imposed by the Central or State Government, subsequent to the submission of the bid but during the scheduled contractual completion period shall be reimbursed against documentary evidence. However, the benefit of any withdrawal of any existing taxes, duties, levies, etc. must be passed on to IOCL.

5. In case the bidder seals and signs **Annexure-8** without mentioning any deviation w.r.t. GST rate/SAC Code and other details same shall be determined by IOCL.

6. Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regard. GST reimbursement will be as per actuals or as per applicable rates (whichever is lower), subject to the maximum of quoted GST %.

7. Bidders to ensure that BG issuing bank will send SFMS in IFN 760 COV (for any new Bank Guarantee) and IFN 767 COV (for any amendment in bank guarantee) through the SFMS Platform as per the mandatory fields given below:

Field No.	Description	Value
7034	Name of the Beneficiary with details	INDIAN OIL CORPORATION LIMITED
7035	Beneficiary IFSC	ICIC0000007
7036	Beneficiary branch name and address	ICICI Bank, 9A, Phelps Building, Connaught Place, New Delhi-110001

7037	Sender to Receiver Information	IOCL9270
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8. Before quoting rates on GeM Portal, bidder must refer attached documents in Bid Namely:

- Introduction about the Project /Services Being Proposed for Procurement Using Custom Bid Functionality
- Instruction to Bidder
- Pre-Qualification Criteria (PQC) etc if any required
- Scope of Work
- Payment Terms
- Quantifiable Specification / Standards of The Service/ BOQ
- Project Experience and Qualifying Criteria Requirement
- GEM Availability Report (GAR)
- Any other Documents As per Specific Requirement of Buyer - 1
- Any other Documents As per Specific Requirement of Buyer - 2
- Complete Tender Document is given at **Buyer Uploaded AT C Document**
- Notice Inviting Tender (NIT) is attached as **Buyer Added Bid Specific SLA**
- **Commercial Annexure is attached as “Excel Upload Required”.**

Bidders are required to go through all the above documents and bid shall be submitted based on all requirements mentioned in those documents, failing which your bid is liable for rejection.

10. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

11. Buyer Added Bid Specific SLA

12. Buyer Added Bid Specific SLA

Text Clause(s)

Documents To Be Submitted By Bidder

1. Duly filled, signed and stamped copy of **Annexures - 1 to 34** by authorized signatory. Default values / options have been filled/selected in most of the Annexures, bidder is requested to read all the Annexures, refer to instruction given at the bottom of each annexure and fill it properly. Bidder can change the default values / options with proper justification. **The Bidder needs to first fill the Annexure, take the printout of Annexure, and submit it duly signed and stamped in pdf format. All Annexures must be in Complied Status with Green Color.**
2. Duly Signed and Stamped Copy of **Gem Bid Document** along with **Schedule of Rates (SOR)** (available with Tender document on GeM-Tender portal).
3. **UDYAM/ MSME/ NSIC/ Registration certificate (EMD is not applicable for any bidder)**
4. For F.Y **2023-24, 2024-25 & 2025 -26:**
Turnover shall be as per the audited Standalone Financial Statements [Audited Profit & Loss statements (**Form 3CB/3CD**) and audited balance sheets along with detailed ITR copies] of the Bidder. However, if the Bidder is not required to get its accounts audited under section 44AB of the income Tax Act, 1961, a **Turnover certificate** from a "**Practicing Chartered Accountant towards the turnover of the Bidder and same is correlated with Annual GST turnover**" along with copy of its Income Tax Return (Detailed ITR Form) / ITR acknowledgement filed on income tax official website should be obtained.

The audited financial statement shall be signed with membership No. and **UDIN No.** of the statutory auditor as per statutory norms (Applicable for Indian entities).
5. Full Work order-1 along **with completion certificate and all payment proofs [Invoice, Transaction Receipts and TDS copy].**
6. Full Work order-2 along with completion certificate and all payment proofs.
7. Full Work order-3 along with completion certificate and all payment proofs.
8. **Provident Fund Registration Certificate**
9. **PAN Card.**
10. **GST - Goods and Service Tax Registration Certificate**
11. Bidder is:
 - a) **Proprietorship firm:** Proprietor of the firm himself or power of attorney holder (In case of power of attorney holder, the PoA should be issued by Proprietor **on stamp paper of appropriate value and should be duly notarized**). The proprietor will also upload undertaking on their letterhead certifying that he is the sole proprietor.
 - b) **Partnership Firm/ LLP:** All the partners or a partner holding power of attorney or a power of attorney holder for signing the tender (Partnership deed/ LLP agreement to be submitted. **The power of attorney must be on stamp paper of appropriate value and should be duly notarised**).
 - c) **Private or Public Limited Company or Incorporated Joint Venture:** Power of attorney **must be on stamp paper of appropriate value and should be duly notarised or Duly certified** Board Resolution authorising the person submitting the bid on behalf of the company (

Memorandum and Article of Association also to be submitted).

12. **Any other documents as stipulated in the tender.**

13. **Any corrigendum/ addendum duly signed and stamped.**

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into

force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

This Bid is governed by the [सामान्य नियम और शर्तें/General Terms and Conditions](#), conditions stipulated in Bid and [Service Level Agreement](#) specific to this Service as provided in the Marketplace. However in case if any condition specified in सामान्य नियम और शर्तें/General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement, then it will over ride the conditions in the General Terms and Conditions.

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्यवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---